

IN THE SENATE

SENATE BILL NO. 1348, As Amended

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PUBLIC OUTDOOR TARGET RANGES; AMENDING CHAPTER 18, TITLE 36, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 36-1808, IDAHO CODE, TO PROVIDE FOR THE PLANNING AND DEVELOPMENT OF PUBLIC OUTDOOR TARGET RANGES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 18, Title 36, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 36-1808, Idaho Code, and to read as follows:

36-1808. PUBLIC OUTDOOR TARGET RANGES.

(1) (a) The legislature finds that:

(i) In 2023, the legislature, through House Bill No. 304, as enacted by the first regular session of the sixty-seventh Idaho legislature, directed the Idaho fish and game commission to expend up to five million dollars (\$5,000,000) in federal funds received pursuant to the Pittman-Robertson wildfire restoration act and such moneys as the state is required to match such said federal funds. Such moneys were appropriated for the acquisition of forty (40) to sixty (60) acres of land owned by Kootenai county adjacent to the Coeur d'Alene airport in north Idaho, so that the skeet and trap shooting range, located on such county-owned land, could continue in operation.

(ii) The acquisition of such land owned by Kootenai county may not be possible;

(iii) The alternative proposed by the Idaho department of fish and game, whereby the department will lease the land owned by Kootenai county so that the current skeet and trap club can continue operating in its current form and location until such time as a new shotgun sporting complex can be constructed and opened to the public adjacent to Farragut state park as soon as is practicable after December 31, 2039, is a sound alternative that should be pursued;

(iv) The Coeur d'Alene skeet and trap club, established as an important nonprofit in Idaho in 1947, continues to provide an invaluable service to the residents of north Idaho, and, to the extent possible, should be allowed to continue its mission and service at its current location and any new location that may be created pursuant to this section; and

(v) The continuation of the long-standing skeet and trap club and expansion of such public outdoor target range opportunities in north Idaho is consistent with this chapter and the purpose for which such funds are available.

(b) Therefore, it is the intent of the legislature to:

(i) Ensure the continuation and provide for the expansion of public outdoor target range recreational opportunities in north Idaho through the use of moneys previously appropriated through House Bill No. 304, as enacted by the first regular session of the sixty-seventh Idaho legislature; and

(ii) Support the continuation of the long-standing Coeur d'Alene skeet and trap club as an invaluable part of north Idaho's community and economy.

(2) The commission shall develop a long-term plan for the development of a shotgun sporting complex to be located on Idaho fish and game lands adjacent to Farragut state park. Such plan, and revisions thereto, shall be made publicly available and provided to the house resources and conservation committee and senate resources and environment committee for their review during the 2027 legislative session.

(a) Such plan shall be reviewed by the commission at least every five (5) years and shall be revised by the commission to reflect changes in land use, technologies, and planning and as the commission deems necessary.

(b) Upon request by the commission, the department of fish and game may:

(i) Assist the commission in the development and execution of the plan;

(ii) Enter into negotiations to lease or acquire property; and

(iii) Perform such other duties as may be requested.

(c) The commission may execute such leases or acquisitions on behalf of and in the name of the state of Idaho pursuant to section 36-104, Idaho Code.

(3) The commission shall coordinate its efforts with the director of the department of fish and game to promptly develop and open to the public a shotgun sporting complex on Idaho fish and game lands adjacent to Farragut state park no later than December 31, 2040. The shotgun sporting complex shall include, at least:

(a) Six (6) combination trap and skeet fields;

(b) Fifteen (15) sporting clay stations with at least four (4) mechanical target throwers at each sporting clay station for a total of at least sixty (60) mechanical target throwers. Of the mechanical target throwers:

(i) At least two (2) of the mechanical target throwers shall be capable of throwing rabbit targets; and

(ii) At least three (3) shall be teal/chandelle mechanical target throwers;

(c) One (1) five-stand station that has at least ten (10) mechanical throwing machines, of which there are at least:

(i) Two (2) tower-mounted throwing machines;

(ii) One (1) machine capable of throwing rabbit targets; and

(iii) One (1) teal/chandelle mechanical target throwing machine;

(d) Such other commercial trap machines as are desired by the department of fish and game; and

(e) Public infrastructure sufficient to accommodate patrons of the complex, including but not limited to constructing and maintaining:

- (i) A clubhouse and bathrooms with sufficient parking for vehicles with trailers;
- (ii) Outdoor seating and safety signage;
- (iii) Pathways for public use that are navigable by off-highway vehicles and golf carts; and
- (iv) Storage facilities.

(4) Under no circumstances shall the skeet and trap shooting range located in Kootenai county cease operations while the department is leasing such lands prior to the opening of the shotgun sporting complex on Idaho fish and game lands adjacent to Farragut state park.

(a) The department of fish and game shall be responsible for the continued operation and management of the shooting range regardless of whether the department fails to find a suitable concessionaire or the concessionaire terminates its lease or otherwise fails to operate the range.

(b) The department shall continue leasing the Kootenai county land until the shotgun sporting complex is opened to the public. Such lease shall not be terminated or not renewed by fault, in any way, of the department unless such action is necessary due to the sporting complex being opened to the public.

(5) To fulfill the duties provided by this section, the commission shall apply for and use Pittman-Robertson wildlife restoration act funds and such other sums appropriated to it pursuant to House Bill No. 304, as enacted by the first regular session of the sixty-seventh Idaho legislature. Additional moneys needed by the commission may be requested and provided pursuant to legislative appropriation upon a showing by the commission that moneys previously appropriated are not sufficient to or cannot cover a portion of the costs to construct, operate, maintain, and keep the complex open to the public.

(6) Each year, the department of fish and game shall provide a written report on any actions related to the acquisition, lease, or planning of the properties described in this section to the joint finance-appropriations committee, senate resources and environment committee, and house resources and conservation committee.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.